

SENATE BILL 1865

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 102, relative to grants.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-102-154, is amended by deleting the section and substituting:

(a) As used in this section:

(1) "Firefighting equipment":

(A) Means the equipment used by a firefighter to contain or extinguish fires and to protect the life of the firefighter; and

(B) Does not include fire trucks or vehicles;

(2) "Rescue equipment":

(A) Means equipment used by a rescue squad for the purposes of performing rescue services or other emergency response; and

(B) Does not include vehicles;

(3) "Rescue squad" means a department of a municipality, county, or political subdivision, or a nonprofit organization that offers its services, for or without pay, for the purposes of performing rescue services or other emergency response; and

(4) "Volunteer fire department" means a fire department recognized by the state fire marshal's office, pursuant to § 68-102-304, as a volunteer fire department.

(b) The following grant programs are established:

(1) The volunteer firefighter equipment and training grant program, to annually provide grants to select volunteer fire departments to be used for the purchase of firefighting equipment or to meet local match requirements of federal grants for the purchase of firefighting equipment and training; and

(2) The rescue squad grant program, to annually provide grants to select rescue squads to be used for the purchase of firefighting equipment and rescue equipment.

(c) The total amount of grants awarded each year under the program established by subdivision (b)(1) must be equally divided among the three (3) grand divisions of this state.

(d) It is the legislative intent to fund the grant programs created by subsection (b) by providing a sum-sufficient appropriation in each fiscal year's annual appropriation bill.

(e) The commissioner of commerce and insurance shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to establish guidelines for evaluating grant requests and determining which volunteer fire departments or rescue squads will receive grants pursuant to this section.

(f) The commissioner of commerce and insurance shall decide which grants to award and shall disburse the grants to the selected volunteer fire departments and rescue squads. The commissioner shall endeavor to expend all funds appropriated to the grant programs each year, and any funds remaining must not revert to the general fund but remain available for expenditure in subsequent fiscal years.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.